

Pappu Sharma v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 1 May 2024 · 2024:AHC:77866-DB · WRIT - C No. - 14276 of 2024 · **Writ disposed; apply as per Supply Code; consider within two months**

HEADNOTE

On a writ seeking mandamus to decide a pending application and to grant an electricity connection, the High Court, without examining the claim on merits, disposed of the petition with liberty to apply for connection as per the Electricity Supply Code, directing the licensee to consider and decide the application on its own merit preferably within two months.

FACTUAL SUMMARY

The petitioner, Pappu Sharma, filed a writ petition seeking mandamus commanding the Power Corporation to decide his application dated 15.2.202 for an electricity connection expeditiously, and to provide the connection. The Division Bench heard counsel for the petitioner, the State, and the Corporation. Counsel for the respondents submitted that the grievance could be suitably considered and redressed if the petitioner applied for electricity connection as per the Electricity Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

application-for-new-connection

HOLDING

A writ seeking mandamus to decide a pending connection application and to grant supply is disposed of without examining the claim on merits; the petitioner may apply for electricity connection as per the Electricity Supply Code and the licensee shall consider and decide the application on its own merit preferably within two months. ¶ 4-6

PRINCIPLE TAGS

relegate-to-statutory-remedy On a writ seeking mandamus to decide a pending application and to grant an electricity connection, the High Court, without examining the claim on merits, disposed of the petition with liberty to apply for connection as per the Electricity Supply Code ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO ELECTRICITY CONNECTION ON THE PENDING APPLICATION

Court expressly declined to consider the claim on merit. ¶ 6